

["since it does appear that the full extent of plaintiffs' damages cannot be determined until the resolution of the pending litigation, the trial court has the inherent authority to stay this action pending that event."] [citation omitted].)

Because the Court grants the motion to stay, the pending motion to strike is off calendar.

A status conference to address the status of the stay and the underlying case is scheduled for March 6, 2026, at 8:30 a.m.

13. 9:00 AM CASE NUMBER: MS25-0449
CASE NAME: CSCDA COMMUNITY IMPROVEMENT AUTHORITY VS. ADONICA SHAW
***HEARING ON MOTION IN RE: MOTION TO SET ASIDE JUDGMENT AGREEMENT ENTERED UNDER DURESS**
FILED BY: SHAW, ADONICA
TENTATIVE RULING:

Defendant Adonica Shaw moves to set aside a judgment entered in an unlawful detainer as the result of a settlement. The settlement, entered July 11, 2025, provided that she would pay back rent and other costs of \$15,443.89, and could remain in possession until September 13, 2025.

The proceeding in question was a court trial, which was preceded by a voluntary settlement conference with a third-party mediator provided by the court. Defendant contends that Plaintiff was represented at the hearing by an attorney for the plaintiff who had not made any formal written appearance. She moves to set aside judgment on the ground it was obtained by "fraud, duress, or other improper means." Specifically, she claims that "this unauthorized representative attempted to strong-arm the defendant into a judgment or agreement without proper notice or opportunity for consultation."

Defendant anticipated the appearance of Christopher Rosseau, the attorney of record. Instead, a different attorney (Jacqueline Prisbylla) from the same firm (Kimbal, Tirey & St. John LLP), appeared. There was no prior or written notice of this "change." Defendant objects to some of the questions asked by Mr. Prisbylla. She further states that "Fearing imminent eviction of myself and my children, I signed the settlement agreement drafted by Ms. Prisbylla. My signature was not a free, knowing, or intelligent assent."

A third-party mediator, Deborah Levy, was present throughout the mediation.

As to the issue of plaintiff's attorney, once a law firm appears on behalf of a client, any attorney from that firm may appear in the case without need of a substitution of counsel. (*Raskin v. Superior Court* (1934) 138 Cal.App. 668, 670, 33 P.2d 35.) Thus, Ms. Prisbylla's appearance was not a "change" in attorneys, which would require compliance with Code of Civil Procedure section 284 and 285.

The fact that defendant was without counsel does not render the judgment improper.

Given the summary nature of unlawful detainer proceedings, defendant may indeed have faced the imminent prospect of losing her home. This is common in unlawful detainer proceedings, and does not by itself render any settlement unlawful or fraudulent, nor does it vitiate defendant's consent.

The circumstances of the agreement, even as set forth by defendant, do not set forth fraud, duress, or other improper means sufficient to permit setting aside the judgment. The motion is **denied**.